CHAKAWAMBA MUJANGU

Versus

GEORGE MANJENGWA

AND

FARAI MARECHA

AND

OBERT MUFANDAUYA

AND

DEPUTY SHERIFF

AND

ZIMBABWE REPUBLIC POLICE

HIGH COURT OF ZIMBABWE
MPOKISENG DUBE J
BULAWAYO, 06 JUNE 2025 & 25 MARCH 2026

Opposed Application- Eviction

T Kamwemba for the applicant
B Chifamba for the 1st and 2nd respondents
No appearance for the 3rd respondent
No appearance for the 4th and 5th Respondents cited in their official capacities

MPOKISENG DUBE J: This application for eviction was made in terms of rule 59 of the High Court Rules, 2021. The applicant petitioned the court to issue an order compelling the 1st, 2nd, and 3rd respondents, along with all those enjoying occupation through them, to vacate A5 Wall Close farm, Totonga, Shurugwi. The 4th respondent, the Deputy Sheriff, and the 5th respondent, the Zimbabwe Republic Police, are cited in their official capacities for the specific purpose of effecting any order granted by this court. The 1st to 3rd respondents opposed the application stating that they have certificates of registration over 10 hectares of the applicant's farm. The 1st and 2nd respondents were legally represented while the 3rd respondent only filed an opposing affidavit but was not legally represented neither was he

in attendance on the day of the hearing. When the parties appeared before me, I directed the applicant to first address me on the preliminary point raised by the 1st and 2nd respondents.

The factual background giving rise to this dispute, as presented by the parties in their respective pleadings, is summarized below:

Applicant's case

The applicant asserts ownership of A5 Wall Close farm, Totonga, Shurugwi. This claim is based on an agreement of sale through which he purchased the farm from one Elias Mpupuni on 8 November 2019. He states that he had moved onto the farm with Mpupuni's consent in August 2018, prior to the formal sale. Upon taking possession, the applicant commenced farming activities and currently maintains a herd of 60 cattle on the property.

The applicant alleges that the 1st, 2nd, and 3rd respondents invaded his farm and are actively engaging in illegal mining activities. These mining operations are described as disruptive to the applicant's farming activities, endangering his livestock (with cattle reportedly trapped in gullies and dongas), causing destruction to fences, and cutting down of trees in contravention of the Environmental Management Act [*Chapter 20:27*]. He further contends that the mining activities are hazardous to the environment and his cattle, and are not compliant with the Environmental Management Agency regulations. Despite numerous reports to the police, the respondents have allegedly failed to heed the directive to vacate the premises. He further states that the mining claims are not located on his farm but the 1st to the 3rd respondents are encroaching onto his farm. The applicant maintains that the respondents have no legal right to be on the farm and are unlawful occupiers who should be evicted to allow him peaceful enjoyment and use of his property.

The 1st and 2nd respondents' case:

The 1st and 2nd respondents contend that they are "lawful miners," asserting that this status is evidenced by a certificate of registration. They argued that their mining rights, by virtue of Section 179 of the Mines and Minerals Act [*Chapter 21:05*], are superior to the applicant's farming rights. They cite Section 179 (*supra*), which permits land owners to graze or cultivate only insofar as it 'does not interfere with the proper working of the location for the mining purposes'. They further claim to have been conducting mining operations on the

property prior to the applicant's agreement of sale i.e. from 2006 when the mining claim was pegged. They cite the case of *Chidyausiku v Havilahvale Mining Syndicate and 3 Ors* HH 314-23 to support the proposition that mining rights take precedence over farming rights.

According to them, the applicant's detailed allegations of specific harm, such as cattle trapped, fences destroyed, trees cut, and environmental damage, are not merely general complaints but constitute direct challenges to the notion of "proper working" under Section 179 of the Mines and Minerals Act *supra*. This suggests that even if the respondents possessed lawful mining rights, such rights are not absolute and do not permit environmentally destructive or negligent conduct.

SUBMISSIONS AND ANALYSIS OF THE PRELIMINARY POINTS.

Whether or not the applicant is a fugitive of justice, and consequently, whether he possesses the requisite locus standi (legal standing) to bring the present application.

The 1st and 2nd respondents raised a preliminary objection concerning the applicant's legal standing, contending that he is a "fugitive of justice".

Mr *Kamwemba*, counsel for the applicant submitted that the preliminary point has no merit as the proceedings before the court are of a civil nature and have nothing to do with criminal matters. He referred the court to section 85 (2) of the Constitution of Zimbabwe, 2013 which provides that the fact that a person has contravened any laws does not debar them from seeking relief under subsection 1. Subsection 1 states that any person acting in their own interest can claim or assert their rights. In *casu* he argued that criminal proceedings and civil proceedings are distinct legal processes, and the existence of criminal charges should not bar him from approaching a civil court when his rights are being infringed.

In his heads of argument filed of record, the applicant stated that the criminal proceedings being referred to were initiated in 2020 and have not been completed, the applicant resides in Zimbabwe and has regularly been present at his farm. He therefore asserted a direct and vested right in the property, as he has a real and substantial interest in the farm and is entitled to institute proceedings to protect his rights. He further criticized the practice of raising unmeritorious preliminary points as a matter of fashion or a tactical maneuver, as stated in the cases of *Telecel Zimbabwe (Pvt) Ltd v Potraz and others* HH 446-15 and *Warren Hills v*

Sunshine & others HH623-23, submitting that such conduct can be an abuse of court process and warrant punitive costs. He concluded by praying for the dismissal of the point in *limine* with costs.

Mr *Chifamba* in response to the point *in limine* submitted that the constitutional right alluded to, especially in relation to a person subject to a criminal prosecution is not a bar when one is a suspect. It only becomes a bar when one flees from prosecution.

He further argued that the applicant simply averred to having attended court and prosecution declined. He however ought to have attached that outcome either from the criminal court, the police or the public prosecutor. He stated that the applicant failed to do so. He further submitted that in their replying affidavits, the applicant did not dispute those facts, invoking the legal principle that what is not denied in affidavits must be taken to be admitted, citing the cases of *Fawcett Security Ops (Pvt) Ltd v Dir C & E and Ors* 1993(2) ZLR 121 (S) and *The Trustees for the Time Being of Cornerstone Trust and others v NMB Bank Limited* SC97-21.

It was further submitted that a court cannot assist a litigant who is in contempt of its processes or wilfully avoids the law, relying on the "clean hands" doctrine. In motivating the respondents' case, reliance was placed on the case of *Chioza v Siziba* SC4-15 to support the view that a person who makes it impossible for court processes to be effected cannot ask the court to protect their civil rights. He further emphasized the direct connection between the alleged criminal conduct (theft of gold ore) and the subject matter of the civil dispute (the farm from which eviction is sought).

In his heads of argument, the applicant explicitly states that he resides in Zimbabwe and is always at his farm and that the criminal proceedings have not been completed. This constitutes a factual denial of being a fugitive of justice in the sense of evading legal process. Therefore, the respondents' argument that the applicant admitted his fugitive status, based on the principle that "what is not denied in affidavits must be taken to be admitted," is not applicable here, as the applicant has indeed addressed the factual premise of the claim.

While the alleged criminal charges for theft of gold ore are directly related to the subject matter of the civil application, the respondents have not sufficiently proven that the applicant is actively evading arrest or is in contempt of court processes. The mere existence

of uncompleted criminal proceedings or an alleged warrant, without concrete evidence of the applicant's willful evasion of justice, is insufficient to strip him of his *locus standi* in a civil matter. The "clean hands" doctrine, while important, requires a clear demonstration of a litigant's defiance of the court's authority. In this instance, the respondents have failed to discharge the burden of proving that the applicant is a fugitive of justice to the extent that it would bar him from seeking civil relief. The applicant has asserted his presence in Zimbabwe and at the farm, which contradicts the notion of him being a fugitive. The 1st - 3rd respondents have been litigating with the applicant, surely it would only take them a phone call to the nearest police station to alert them that the applicant is at his farm and they ought to arrest him. It is for the foregoing reasons that I determine that there is no merit in the first and second respondent's preliminary objection that the applicant has no *locus standi* as he is a fugitive from justice.

Given the dismissal of the preliminary point regarding the applicant's *locus standi*, I now proceed to determine the substantive merits of the eviction application.

ON THE MERITS

Whether or not the applicant is entitled to an order for the eviction of the 1st, 2nd, and 3rd respondents, and all those enjoying occupation through them, from the farm.

At the hearing of the application, Mr *Kamwemba* submitted that he abides by the heads of arguments filed of record. The applicant bases his claim on his proven ownership of A5 Wall Close farm, evidenced by an agreement of sale. He asserts that the respondents are unlawful occupiers who lack any legal right to be on the farm. Mr *Kamwemba* further submitted that the respondents are engaging in harmful activities that harm the interests of the applicant. In their pleadings filed of record, the applicant detailed the adverse impact of the respondents' activities, including disruption to farming, endangerment of livestock (cattle trapped), destruction of property (fences, trees), and environmental degradation (gullies, dongas), all allegedly in breach of the Environmental Management Act and agency compliance. He highlighted that despite reporting the respondents to the police multiple times, they have failed to vacate the premises. The applicant argued that he has a real and substantial interest in the farm, citing the case of *Allied Banking and Dengu and Another* SC -2016, and that eviction is the only effective remedy to restore his peaceful use and enjoyment of the property.

Mr *Chifamba* for the 1st and 2nd respondents argued that the respondents assert their status as lawful miners, however, no certificate of registration was attached to their pleadings to substantiate this claim. All that was submitted on their behalf were mere allegations that they are lawful owners of the mining claims that encroach on the applicant's farm.

They further motivated the point raised in their pleadings that the agreement of sale which the applicant seeks to rely on is invalid as the applicant failed to provide a subdivision permit to show that the contract is valid and that he legitimately entered into it. He contended that the position of the law is clear and well-articulated in the case of *Chioza v Siziba* SC 4-15 and *Divvyland Investments (Private) Limited v Chiweza* SC138-21. He further argued that the mining rights of the respondents are superior to the applicant's farming rights, specifically citing Section 179 of the Mines and Minerals Act (*supra*) which stipulates that a landowner's right to graze or cultivate a registered mining location is retained only if it "does not interfere with the proper working of the location for the mining purposes". He concluded by submitting that the respondents had been conducting mining operations on the property prior to the applicant's agreement of sale.

The requirements for an order of eviction based on *rei vindicatio* are well-established. The applicant must prove two things:

1. That he is the owner of the property.
2. That the respondents are in possession of the property.

Once the applicant establishes these two elements, the onus shifts to the respondents to prove that they have a legal right to occupy the property.

The applicant has produced an agreement of sale and states that he has been in physical occupation of the farm since 2018. While a title deed is the ultimate proof of ownership, an agreement of sale, coupled with possession, establishes a strong *prima facie* right to the property. The respondents do not dispute that they are in occupation of the farm. In fact they state that their mining rights are superior to the farming rights of the applicant. The Applicant has therefore successfully discharged his initial onus. The burden rested squarely on the respondents to justify their presence on the applicant's farm.

The 1st and 2nd respondents' defence is that they are lawful miners and that their mining rights, by law, are superior to the applicant's surface rights. In their notice of opposition, they state that their status as lawful miners is evidenced by a certificate of registration attached to their pleadings. This is the central point of failure in their opposition. Despite making this crucial averment, the 1st and 2nd respondents have failed to attach the said certificate of registration or any other document to their papers to substantiate their claim. A court of law makes its decisions based on the evidence placed before it, not on bald and unsubstantiated assertions made in affidavits or heads of argument. Without the certificate of registration, their claim to be "lawful miners" remains just that, a claim, devoid of any evidentiary weight.

It is a settled position of the law that he who alleges must prove. In *Mbira* v *Civil Service Commission* SC 32-21, Makarau JA (as she then was) held that:

> "The law applicable in the determination of this appeal is trite. It is the bedrock of all civil trials in this and other sister jurisdictions which have adopted adversarial trials as the main formal dispute resolution mechanism. That the law places the burden to prove any allegation on him or her who makes the allegation. Thus, the general proposition has always been that he who asserts must prove on a balance of probabilities, but prove he must."

The argument that mining rights are superior to farming rights under the Mines and Minerals Act [*Chapter 21:05*] is only triggered once a party has proven that they are, in fact, the holder of such mining rights. Having failed to provide any proof of their alleged rights, the 1st and 2nd respondents have failed to discharge the onus upon them. They have not established a legal basis for their occupation of the property.

The position of the 3rd respondent is different, yet ultimately leads to the same outcome. As per his notice of opposition, the 3rd respondent, Obert Mufandauya, did attach a certificate of registration to his notice of opposition, thereby presenting a potential defence to the eviction.

However, a party who files papers and then fails to appear at the hearing to argue their case is in default. The court cannot become the litigant's advocate. While his documents are on record, his failure to appear to prosecute his opposition means his claim is not advanced. The applicant and his counsel were present to argue their case, while the 3rd respondent was conspicuously absent. His non-appearance constitutes an abandonment of his opposition. The court cannot speculate on the validity or applicability of the certificate he filed without the

benefit of argument from him. As he has not availed himself to the court, his opposition cannot succeed.

Disposition

The applicant has established his right to the property for the purposes of this application. The 1st and 2nd respondents have failed to produce any evidence to support their claim of being lawful miners, thereby failing to establish a right of occupation. The 3rd respondent, though having filed the requisite proof, is in default and has effectively abandoned his opposition.

Consequently, the applicant is entitled to the relief he seeks.

Costs

The general rule is that costs follow the cause. I will make reference to the case of *Dongo v Naik & 5 Ors* SC 52 -2020 wherein the court in justifying an award of costs on a higher scale stated as follows:

> "It is settled law that costs are at the discretion of the court. The award can only be set aside where the discretion was not exercised judiciously. It is also settled that costs on a higher scale are granted in exceptional circumstances. The grounds upon which the court would be justified to make an award for costs on a legal practitioner and client scale include dishonest or malicious conduct, and vexatious, reckless or frivolous proceedings by and on the part of the litigant concerned."

The 1st and 2nd respondents raised a point *in limine* with no merit and have defended this matter on the basis of an alleged right for which they have provided no proof. This conduct warrants a punitive costs order.

Accordingly, it is ordered that:

1. The application for the eviction of the 1st, 2nd, and 3rd respondents, and all those claiming occupation through them from A5 Wall Close Farm, Totonga, Shurugwi, be and is hereby granted.
2. The 1st, 2nd, and 3rd respondents and all persons claiming occupation through them shall vacate the property known as A5 Wall Close Farm, Totonga, Shurugwi, within seven (7) days of the date of this order.

3. Should the respondents fail to comply with paragraph 2 of this order, the 4th respondent is hereby authorised and directed to evict the 1st, 2nd, and 3rd respondents and all those claiming occupation through them from the said property.
4. The 5th respondent (Zimbabwe Republic Police) is directed to provide assistance to the 4th respondent in the execution of this order, if so requested.
5. The 1st and 2nd respondents shall pay the costs of this application jointly and severally, the one paying the other to be absolved, on the legal practitioner and client scale.

Tavenhave & Machingauta Legal Practitioners, applicant's legal practitioners
Mkushi & Maupa Legal Practitioners, 1st and 2nd respondent's legal practitioners